

PLAYING GOD
THE RIGHT TO DIE WITH DIGNITY

NEED TO BALANCE CARE AND CHOICE

In recent years, there has been active debate on whether healthcare should be focused on saving lives or the quality of life. This debate has only gathered pace after the Supreme Court, in a historic verdict in 2018, allowed for 'passive euthanasia' while recognising the right of patients to make advance directives or 'living wills'. The verdict enabled terminally ill patients to refuse life support if their condition was found to be incurable, thereby saving them months, perhaps even years, of a life filled with pain and no hope of a cure or relief in sight.

The India Today Conclave brought together an eclectic mix of experts to discuss the legal, medical and spiritual aspects of an individual's right to die with dignity. "To not let a person who has lived with dignity die with dignity, I think is very unfortunate," said Supreme Court lawyer Nisha Bhambhani. But Dr Sanjeev Bagai, Chairman, Nephron Clinics, had a word of caution: "This law is liable to be blatantly misused in various nooks and corners of this country, be it for property, be it for inheritance, be it for lack of finances, be it for lack of insurance."

As such, none of the panelists was in favour of active euthanasia, which employs lethal drugs and remains illegal in India, and the discussion emphasised the importance of pain management in a country like ours where many critically ill patients do not have access to painkillers. "At any given point in time right now, there are 7-10 million Indians in moderate to severe pain, which will not allow them to be at this table having this discussion with us. The acceptance of death is also grace...and what we can do is to make it as comfortable and dignified as possible," said Smriti Rana, who works in the area of palliative care. ISKCON monk Gauranga Das added, "One of the best ways in which we can lessen and decrease that pain is to provide the best kind of medical and emotional support to the patient and if you can add spiritual understanding... nothing like it." ■

We're dealing with passive euthanasia. Somebody only being fed by artificial feeding...in that event, to not let a person who has lived with dignity die with dignity, I think is very unfortunate

-Nisha Bhambhani
Senior Advocate, Supreme Court

Any law has to be scalable, sustainable, implementable and enforceable. What happens in the interiors of India if this law goes like wildfire, there will be uncontrollable misery

-Dr Sanjeev Bagai
Chairman, Nephron Clinics



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All spiritual traditions focus on the sanctity of life... karma and dharma, and the right to perform our duty and tolerate pain. Active euthanasia is not at all supported

-Gauranga Das
ISKCON monk, spiritual teacher, motivational speaker

There is a national programme for palliative care. It needs to be implemented; we're struggling with it. Less than 4 per cent of Indians who need palliative care have access to it

-Smriti Rana
Head, Strategic Programmes and Partnerships, Pallium India